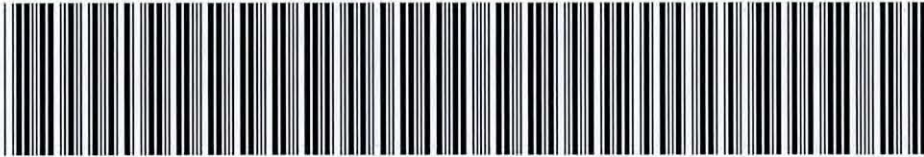


DI07-015

EWR D&I ANNOTATION

FAN-000001L063001DP518-9230

Artemis # : 000001L063001DP518**Record Created Date :** 04/18/2007**Printed Date :** 04/19/2007**Description :**

THE DATE WAS 09/09/06 AT APPROXIMATELY 3:30 PM. A 2007 SATURN ION {SUBJECT VEHICLE} WAS TRAVELING NORTH ON A TWO LANE COUNTY ROAD. SUBJECT VEHICLE'S SPEED WAS ABOUT 55 MPH. FOR WHATEVER REASON, THE DRIVER RAN OFF THE RIGHT SIDE OF THE ROADWAY, THEN OVERCORRECTED TO THE LEFT TRYING TO AVOID A HEAD-ON COLLISION. SUBJECT VEHICLE THEN RAN OFF OF A TWENTY FOOT EMBANKMENT ON THE LEFT SIDE OF THE ROAD. THE VEHICLE ROLLED OVER AND LANDED UPSIDE DOWN, THEN SKIDDED UPSIDE DOWN AND IMPACTED A TREE BEFORE COMING TO REST. THE OWNER/DRIVER SUFFERED FATAL INJURIES AND THE RIGHT FRONT PASSENGER WAS INJURED, BUT SURVIVED. THE DRIVER WAS NOT WEARING THE SEATBELT AND THE PASSENGER WAS. TO DATE, NO LEGAL COUNSEL HAS FILED WITH THIS CASE, BUT THE FIANCE OF THE OWNER/DRIVER PLACED A PHONE CALL TO SATURN TO FILE A COMPLAINT STATING THAT THE AIR BAGS DID NOT DEPLOY, AND POSSIBLY A BRAKE MALFUNCTION DURING THE CRASH. POLICE REPORT STATES BASICALLY THE SAME DESCRIPTION OF THE CRASH THAT WAS MENTIONED EARILIER. GM DI RESPONSE-TO DATE, NO ASSESSMENT INCLUDED FOR THE ALLEGED DEFECT. NO SAFETY RECALLS, NO FIELD REPORTS, NO PURSUITS, HOWEVER WE DO HAVE A COMPLAINT WITH A VOQ WITH THE SAME CONCERN.

Print

Close



U.S. Department
of Transportation
**National Highway
Traffic Safety
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

CERTIFIED MAIL
RETURN RECEIPT REQUESTED

FEB 21 2007

Ms. Gay Kent
General Motors Corp.
Mail Code 480-210-G11
30001 Van Dyke
Warren, MI 48090

NVS-217ph
DI07-015

Dear Ms. Kent:

The Office of Defects Investigation (ODI) of the National Highway Traffic Safety Administration (NHTSA) has received information about certain death and injury incidents reported by General Motors (GM) in its light early warning report from 3rd quarter of 2006. We are writing to request additional information about the following incidents:

Selected Death and Injury Incidents	
For Reporting Category: L	
For the following Sequence IDs: 11, 125, 129, 146, 162, 167, 172, 186, 241, 261, 272, 273, 348, 358, 361, 371, 397, 437, 456, 462, 491, 494, 515, 518, 521, 524	

Unless otherwise stated in the text, the following definitions apply to these information requests:

Incident: each incident identified in the attached spreadsheet.

Claim and Notice: shall have the meanings stated in 49 CFR §579.4(c). Claim and notice also specifically refer to the claim(s) and notice(s) that are the predicate for the early warning report on the incident.

Manufacturer: refers to GM.

Vehicle: the vehicle produced by GM that is identified in the claim or notice.

Tire: the tire produced by GM that is identified in the claim or notice.



VEHICLE SAFETY HOTLINE
888-327-4236

Equipment: the item of motor vehicle equipment produced by GM that is identified in the claim or notice.

Defect: means any failure, malfunction, lack of durability, or other problem in performance, construction, a component, or material of a motor vehicle or piece of motor vehicle equipment.

Document: "Document(s)" is used in the broadest sense of the word and shall mean all written, typed, graphic and photographic matter whatsoever (except autopsy photographs), be it in original, copy or electronic form. Any photograph originally produced in color must be provided in color and in electronic form, if possible. Furnish all documents whether verified by GM or not. If a document is not in the English language, provide both the original document and an English translation of the document. Document(s) includes all documents in GM custody and/or control.

Please provide numbered responses to the following inquiries, repeating the applicable request verbatim before each response. After GM's response to each request, identify the source of the information and indicate the last date the information was gathered. When documents are produced, the documents shall be produced in an identified, organized manner that corresponds to each pertinent information request. A separate response must be provided for each incident. Each response, document or attachment must be clearly identified with the incident Sequence ID (SeqID) number.

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.
2. Provide a copy of the Police Accident Report.
3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

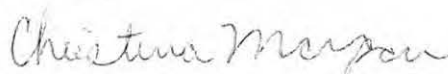
This letter is being sent to GM pursuant to 49 U.S.C. § 30166, which authorizes NHTSA to conduct any investigation that may be necessary to enforce Chapter 301 of Title 49 and to request reports and the production of things. It constitutes a new request for information. GM's failure to respond promptly and fully to this letter could subject GM to civil penalties pursuant to 49 U.S.C. § 30165 or lead to an action for injunctive relief pursuant to 49 U.S.C. § 30163. (Other remedies and sanctions are available as well.) Section 5(a) of the TREAD Act, codified at 49 U.S.C. § 30165(b), provides for civil penalties of up to \$5,000 per day, with a maximum of \$16,050,000 for a related series of violations, for failing or refusing to perform an act required under 49 U.S.C. § 30166. See 49 CFR 578.6 (as amended by 69 Fed. Reg. 57864 (Sept. 28, 2004)). This includes failing to respond to ODI information requests.

If GM claims that any of the information or documents provided in response to this information request constitute confidential commercial material within the meaning of 5 U.S.C. § 552(b) (4), or are protected from disclosure pursuant to 18 U.S.C. § 1905, GM must submit supporting information together with the materials that are the subject of the confidentiality request, in accordance with 49 CFR Part 512, as amended (69 Fed. Reg. 21409 et seq; April 21, 2004), to the Office of Chief Counsel (NCC-110), National Highway Traffic Safety Administration, Room 5219, 400 Seventh Street, S.W., Washington, D.C. 20590.

Your response to this letter, together with a copy of any confidentiality request, must be submitted to this office by **March 23, 2007**. Please include in your response the identification codes referenced on page one of this letter. If you are unable to provide all of the information requested within the time allotted, you must request an extension from me at (202) 366-4238, no later than five business days before the response due date. If all of the information requested by the original deadline is unavailable, you must submit a partial response by the original deadline with whatever information then is available, even if an extension is granted.

If you have any technical questions concerning this matter, please contact Mr. Leo Yon at (202) 366-7028 or by fax at (202) 366-7882.

Sincerely,



Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
Enforcement



GENERAL MOTORS NORTH AMERICA
Structure & Safety Integration

March 23, 2007

Ms. Christina Morgan, Chief
Early Warning Division
Office of Defects Investigation
National Highway Traffic Safety Administration
400 Seventh Street, S.W.
Washington, DC 20590

RECEIVED
NVS-215
2007 MAR 27 A 10:17

OFFICE OF
DEFECTS INVESTIGATION

NVS-217ph
DI07-015

Dear Ms. Morgan:

This is General Motors' (GM) response to your inquiry dated February 21, 2007 regarding certain death and injury incidents reported by GM in its light early warning report from 3rd quarter of 2006.

GM's response is comprised of 33 CDs for the incidents that are the subject of DI07-015.

Attachment "A" includes instructions for navigating the CD. Each CD, on its face, is identified by the NHTSA Sequence ID number, the Manufacturer's Unique ID number and the year, make and model of the vehicle involved in the incident, e.g., 129 203427344 - 514185 and 2006 Chevrolet Cobalt. When the CD is launched, this identification number appears again along with all of the documents (including photographs and videos) on the CD listed under "Filename." The first document listed under Filename is an index with the Request and Responses, e.g., identified as 129 203427344 - 514185_00_Request and Responses. The index is numbered 1 through 3 to correspond to Inquiries 1 through 3, which are repeated verbatim below. The index also details whether any documents responsive to each inquiry were located.

For example, the first two Inquiries and Responses in the index for the CD are as follows:

DI07-015
129 203427344 - 514185
2006 CHEVROLET COBALT

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Documents.

The remaining documents listed under Filename, reference the Manufacturer's Unique ID number along with the responsive Inquiry number. For example:

129 203427344 - 514185_01_1 - is the first document responsive to Inquiry no. 1.
129 203427344 - 514185_02_1 - is the first document responsive to Inquiry no. 2.

Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-015 Response.doc



Your inquiries and our corresponding replies are as follows:

1. **Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.**

Response: See Attached Documents.

The table below lists the incidents that are the subject of DI07-015, by Reporting Category, Sequence ID, VIN and type of notice received by GM (as "notice" is commonly used, not as it is defined by 49 C.F.R. §579.4(c)). Incidents reported on GM's Early Warning Report Death and Injury worksheet fall into four categories: Lawsuit (LIT), NISM (Not In Suit Matters), Product Allegation Resolution (PAR), or Rumor (RMR). Lawsuit and NISM case types generally meet the §579.4(c) definition of "claim." PAR cases, in this context, refer to customer contacts in which an injury or fatality is alleged to have occurred as a result of a product defect, and are accompanied by a writing that may or may not meet the §579.4(c) definition of "claim" or "notice." Rumor incidents do *not* involve a written or verbal, implied or express allegation of a defect by a customer. Rather, rumor cases generally refer to incidents that GM learned of through the media, which were subsequently investigated further. As such, the document included in response to Inquiry 1 that can be found on the enclosed CD for the PAR and Rumor case listed in the table, may not be a claim or notice of the type generally defined as such by §579.4(c).

(26 Vehicles from the BMH template)			
SEQUENCE ID	VEHICLE IDENTIFICATION NUMBER (VIN)		TYPE
✓ 11	203426976-		NISM
✓ 125	203426862-		NISM
✓ 129	203427344-		NISM
✓ 146	203427546-		RUMOR
✓ 162	203427026-		NISM
✓ 167	203426947-		RUMOR
✓ 172	203427595-		NISM
✓ 186	203427398-		NISM
✓ 241	203427385-		LIT
✓ 261	203426764-		NISM
✓ 272	203426902-		NISM
✓ 273	203427403-		NISM
✓ 348	203427092-		RUMOR
✓ 358	203427555-		NISM
✓ 361	203427685-		NISM
✓ 371	203427189-		RUMOR
✓ 397	203426814-		LIT
✓ 437	203426885-		LIT
✓ 456	203427572-		LIT
✓ 462	203426837-		NISM
✓ 491	203426904-		NISM
✓ 494	203427078-		NISM
✓ 515	203427658-		NISM
✓ 518	203427782-		NISM
✓ 521	203427095-		RUMOR
✓ 524	203426911-		NISM

2. **Provide a copy of the Police Accident Report.**

Response: See Attached Documents.

3. **At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.**

To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

GM claims that certain information, in documents that are part of rumor, claim and lawsuit files maintained by the GM Legal Staff and its outside counsel, is attorney work product and/or privileged. That information includes notes, memos, reports, photographs, and evaluations by attorneys (and by consultants, claims analysts, investigators, and engineers working at the request of attorneys). GM is producing responsive documents from its rumor, claim and lawsuit files that are neither attorney work product nor privileged and withholding those that are attorney work product and/or privileged.

This response was compiled and prepared by this office upon review of documents retrieved by GM and does not include documents generated or received subsequent to the searches.

Please contact me at if you require further information.

Sincerely,

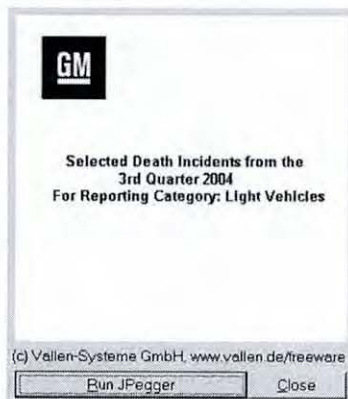


Gay P. Kent
Director
Product Investigations

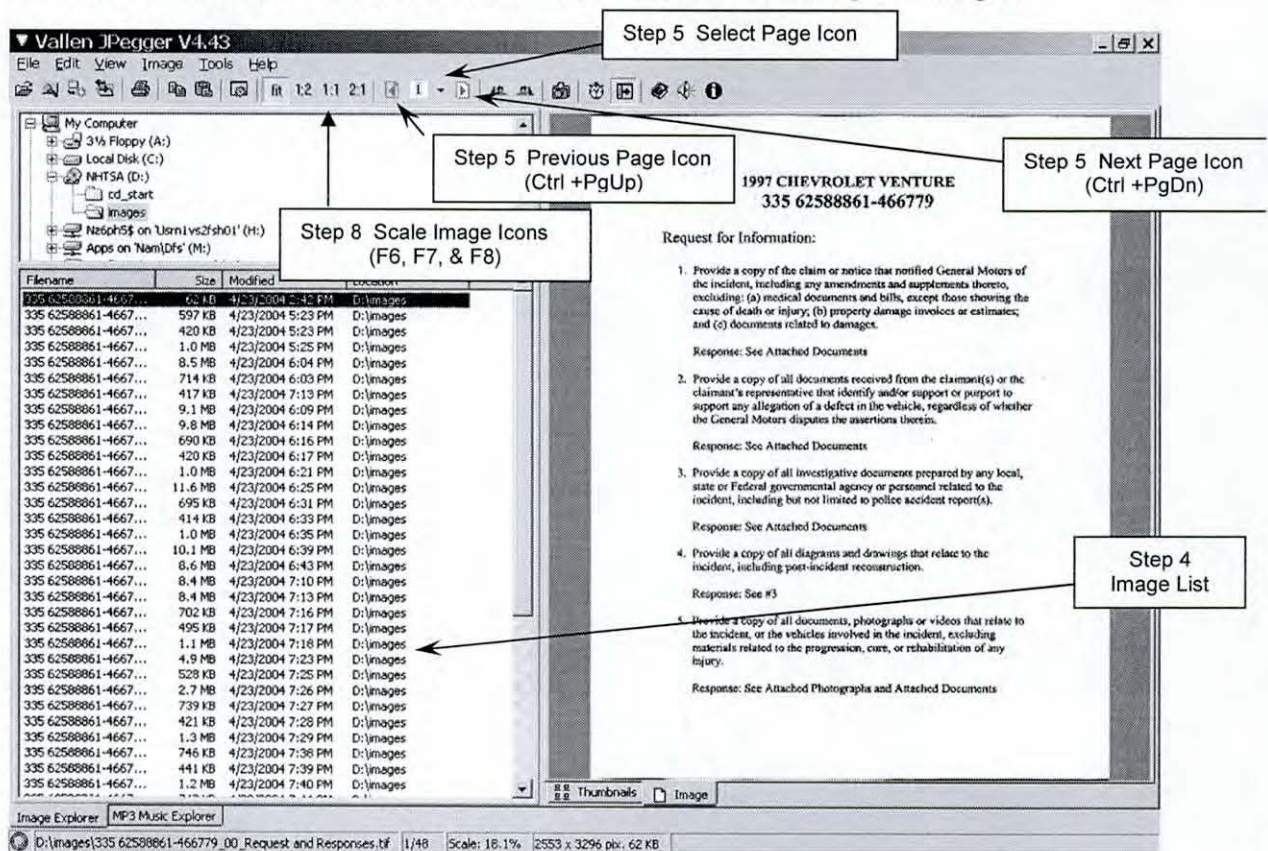
Enclosures: 33 CDs
Attachment A

Attachment A Instructions for using CD Viewer

1. Insert the CD into the CD ROM drive; the CD will open automatically.
2. Click the "Run JPegger" button on the pop up window.



3. The program will launch in the browsing mode, which is shown in the image below.
4. You can use the down arrow key on your keyboard to browse through the images.



Product Investigations

Mail Code: 480-210-G11 • 30001 Van Dyke • Warren, MI 48090
DI07-015 Response.doc



- Each image file may contain multiple pages. In the browsing mode use **Next Page Icon (Ctrl +PgDn)**, **Select Page Icon** or **Previous Page Icon (Ctrl +PgUp)** to browse through all of the pages within an image file. (Note: Some image files may contain up to 80 pages)
- By double-clicking on an image from the file list, a slide show will initiate, however, it will not automatically advance through the pages. Use **Ctrl +PgDn** or **Ctrl +PgUp** to browse through all of the pages within an image file. Left-clicking on an image, while in the slide show mode, will advance to the first page of the next image file.
- Right click on the image to see the image properties, as shown below. Image properties can also be used to view each page within the documents (Next page), or to view the next document within the file list (Next Image).
- If the image is difficult to view, the scale may be changed. Use **F5**, **F6**, **F7**, and **F8** to alternate between scales that fit the screen, or are 50%, 100%, and 200% of the image's original size.

982.2(b)(1)

ATTORNEY OR PARTY/PROSECUTOR ATTORNEY (Please print name, title, number, and address)
 ERIC D. PARIS, ESQ., S/B# 147836
 LAW OFFICES OF ERIC D. PARIS & ASSOCIATES
 281 S. THOMAS STREET
 SUITE 403
 POMONA, CALIFORNIA 91766
 Telephone no.: 909-469-5127 FAX NO: 909-469-5126

FOR COURT USE ONLY

ATTORNEY FOR: PLAINTIFF'S

NOTICE: This cover sheet is to be filed with the first paper filed in the action or proceeding (except under the Probate, Family, or Welfare and Institutions Code) (Cal. Rules of Court, rule 1800). If this case is complex under rule 1800 as set forth in the California Rules of Court, you must also file this cover sheet with the first paper filed in the action or proceeding.

CASE NAME: CARDONA V. CHEVROLET

CIVIL CASE COVER SHEET

Complex Case Designation

Counter ☐ Joinder ☐

Filed with first appearance by defendant (Cal. Rules of Court, rule 1811)

CASE NUMBER

ASSIGNED JUDGE

Please complete all five (5) items below

1. Check one box below for the case type that best describes this case

Auto Tort ☒ Auto (22)

Other PIP/OWD (Personal Injury/Property Damage/Wrongful Death) Tort

Asbestos (54)

Product liability (24)

Medical malpractice (48)

Other PIP/OWD (23)

Non-PIP/OWD (Other) Tort

Business tort/wrong business practice (37)

Civil rights (e.g., discrimination, false arrest) (36)

Defamation (e.g., slander, libel) (13)

Fraud (14)

Intellectual property (15)

Professional negligence (e.g., legal malpractice) (25)

Other non-PIP/OWD tort (20)

Employment

Wrongful termination (35)

Contract

Other employment (18)

Breach of contract/warranty (06)

Customs (e.g., money owed, open book accounting) (05)

Insurance coverage (13)

Other contract (37)

Real Property

Existence of actual/constructive easements (14)

Wrongful eviction (23)

Other real property (e.g., quiet title) (26)

Unlawful Detainer

Commercial (21)

Residential (22)

Drugs (34)

Judicial Review

Assault/battery (05)

Pedestrian/vehicular accident (11)

Will of decedent (02)

Cover judicial review (39)

Previously Complex Civil Litigation (Cal. Rules of Court, rules 1800 - 1812)

Arbitration/Trials registration (03)

Construction defect (10)

Chattel investment loans lost right

Next Image

Previous Image

Next page Ctrl+PgDn

Previous page Ctrl+PgUp

Full screen image Ctrl+F11

Slide show F10

Fit Scale to fit F5

Scale 50% F6

Scale 100% F7

Scale 200% F8

Rotate left Ctrl+Alt+L

Rotate right Ctrl+Alt+R

Rotate by 180°

Copy to clipboard

Copy file to... Ctrl+C

Move file to... Ctrl+X

Rename file... F2

Delete file... Del

EXIF Image Information...

Preferences... Ctrl+R

Step 7 Next File (Image)

Step 7 Next page

Step 8 Scale Image

Step 7 Image Properties

DI07-015
518 203427782 – 515283
2007 SATURN ION

Request for Information:

1. Provide a complete copy of the initial claim or notice document(s) that notified GM of the incident, excluding: (a) medical documents and bills, except those showing the cause of death or injury; (b) property damage invoices or estimates; and (c) documents related to damages.

Response: See Attached Document.

2. Provide a copy of the Police Accident Report.

Response: See Attached Document and Photographs.

3. At your option, provide GM's assessment of the circumstances that led to the incident including GM's analysis of the claim and/or notice regarding allegations of a defect.

Response: To date, General Motors' investigation of the alleged defect has not included an assessment of the cause(s) of each incident responsive to this request. Some incident reports may not contain sufficient reliable information to accurately assess cause. Assessments of claims may be attorney work product and/or privileged. Therefore, information and documents provided in this response, if any, consist only of non-attorney work product and/or non-privileged material for incidents that have been investigated and assessed.

* CASE #12 ' SCREEN UPDATED 9/1/06 *

SR Detail



SR Number: 1-21605425 1241/airbags & brakes/fatality

Contact Name: [REDACTED]

Contact Role: Family Member

Account/Rttr: [REDACTED]

Address: [REDACTED]

City: Huntington

State: WV

Postal Code: [REDACTED]

Country: USA

Work Phone: [REDACTED]

Home Phone: [REDACTED]

Email: [REDACTED]

VIN: 1G8AJ55F07Z [REDACTED]

Mileage: 15

Working Rttr: (10904) Saturn of Charleston Huntington

Legal Type: PLC

Legal SubType: PL

Mobility Chk#: [REDACTED]

Mobility Chk: [REDACTED]

Status: Open

Satisfied: Dissatisfied

Date Opened: 9/12/2006 9:46:39 AM

Date Modified: 9/15/2006 10:39:09 AM

Date Closed: [REDACTED]

Created by : JREDDING

Owned by : DCAYTON

Model: ION2 Sedan

Year: 2007

In Service Date: 9/8/2006

Possible Safety: Y

Leadership: [REDACTED]

SR Summary: **Mileage unknown/15 miles at PDI**

Caller [REDACTED] alleged [REDACTED] airbags didn't deploy and this was a malfunction that resulted in his death during a rollover accident on 9/9/2006. I stated CBE.

SR Types	Created
1241	9/12/2006 10:14:22 AM
Product Complaint	9/12/2006 10:14:27 AM

UCCs	UCC Retailer	Created
C46	Restraints - (SIR) - Driver Front	9/12/2006 10:14:47 AM
C47	Restraints - (SIR) - Driver Side - Side Impact	9/12/2006 10:14:57 AM
C48	Restraints - (SIR) - Passenger Front	9/12/2006 10:15:00 AM
C49	Restraints - (SIR) - Passenger Side - Side Impact	9/12/2006 10:15:03 AM
H01	Brakes - General	9/15/2006 10:26:55 AM
T01	Product Allegation GM.1241	9/12/2006 10:14:40 AM

RECEIVED

SEP 18 2006

ESIS-GM CLAIMS UNIT

SR Detail



Activities	Created	Status	Contact	Account	Created by	Owned by
Inbound Call	9/11/2006 6:57:25 PM	Done	[REDACTED]		JREDDING	JREDDING
Call Back:	[REDACTED]	Due: 9/26/2006 6:00 PM				
Follow-up:	09/11/2006					
Description:						
Comments:	****VIN# 1g8aj55f07z [REDACTED] NOT YET IN DATABASE*** Purchased on Saturday 9/9/2006. 2007 ION. [REDACTED] alleged: - [REDACTED] bought the car over the weekend. - On 9/9/2006 at about 3:30 - 4:00 p.m., [REDACTED] was involved in a fatal crash in his new Saturn, and the airbags didn't deploy. - There was one other occupant with him who survived with some injuries. - [REDACTED] would still be alive today if the airbags had worked properly. - The accident happened on Rt. 75 in Lavalette, WV. - The car ended up 20 feet below the road. - The car is currently at Maynard's in Wayne, WV on Rt. 52. - The insurance was through AARP. She has no claim # yet. She had full coverage insurance. - A police report was filed, but she doesn't have the number. - Both sides of the car were smashed in. It was basically totalled, though the insurance company hasn't looked at it yet. - The road conditions were dry and the weather was clear. - The car was traveling at about 55 mph, according to the surviving passenger who says he saw the speedometer, and they were going under the speed limit. - She was not sure if they were wearing seatbelts at the time. - There were only 2 occupants in the car, [REDACTED] and his best friend. I stated: - CBE 7-10. - SR#. - Forward to Product Support Team. - I will also send some information about the SIR system.					
Outbound Retailer Call	9/12/2006 9:08:58 AM	Done	Walter Hoover (Sales Manager)	Saturn of Charleston Huntington	JREDDING	JREDDING
Call Back:						
Follow-up:	09/12/2006					
Description:						
Comments:	Walter in Sales is who referred the customer to SCAC. I talked to him, and he gave me the VIN# and the name it shows up under: [REDACTED] 7z [REDACTED] He said the accident was a rollover, and he tried to tell her that the airbags are meant to go off only in certain circumstances, and it's hard to determine if this was one of them. He also said the car went over an embankment. He said he only sold the car to them on Saturday. He transferred me back to service, where I spoke with Jimmy and told him we shouldn't work on the car in case it happens to show up at the lot. He agreed.					
Outbound Literature	9/12/2006 9:38:20 AM	Done	[REDACTED]		JREDDING	JREDDING
Call Back:						
Follow-up:	09/12/2006					
Description:						
Comments:	I prepared and SIR brochure to send to the customer, and mailed it out.					

SR Detail



Activities	Created	Status	Contact	Account	Created by	Owned by
Outbound Call - No Answer	9/12/2006 10:02:53 AM	Done	[REDACTED]		JREDDING	JREDDING
	Call Back: Follow-up: 09/12/2006 Description: Comments: [REDACTED] s line was busy.					
Outbound Retailer Call	9/12/2006 10:04:41 AM	Done	Walter Hoover (Sales Manager)	Saturn of Charleston Huntington	JREDDING	JREDDING
	Call Back: Follow-up: 09/12/2006 Description: Comments: I called Walter back. He verified the full VIN# again. 1g8aj55f07z [REDACTED] 2007 ION					
Approve	9/12/2006 11:44:36 AM	Done			DCAYTON	DCAYTON
	Call Back: Follow-up: 09/12/2006 Description: Comments: print out					
Outbound Other	9/15/2006 10:39:13 AM	Done	[REDACTED]		DCAYTON	DCAYTON
	Call Back: Follow-up: 09/15/2006 Description: Comments: I discussed the incident with the claimant. I corrected the 1241 screen with updated/accurate data. I forwarded the case to ESIS for handling and gave the claimant the address for ESIS/GM Central Claims Unit. DMC					

SR Detail**SATURN**Customer
Assistance
Center

1241

OLCM #: PLC200600192
Allegation: SIR-no deploy and brakes
Date of Incident: 9/9/2006 3:30:00 PM
Incident Location: Rt. 75 in Lavalette, WV
Injury: 3 1 fatality. 1 somewhat injured.
Property Damages:
Occupants: 2
Seat Belt Description: driver-no/passenger-not sure
Current Veh. Location: Maynard's/304-272-5449 Wayne, WV on Rt. 52.
Insurance Involved: 3 AARP/phone 800-280-0555/cliam # [REDACTED]
Vehicle Damage: 3 damage all over the vehicle
Police Report: 3 Filed, no report # available.
Other Veh. Involved:
Permission to Inspect:
Driver: [REDACTED]
Claimant: [REDACTED]
Claimant Day Phone: [REDACTED]
Claimant Eve Phone: [REDACTED]
Owner:
Owner Day Phone:
Owner Eve Phone:
Road Conditions: dry
Weather: clear
Vehicle Speed: 55



Hand Filed

- 800-280-0555

#37029

Cynthia
Nelson

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

General Information

Incident Date & Time 9/9/2006

Owner

Title Mr First Name [REDACTED] Middle - Last Name [REDACTED]
Street [REDACTED]
City Huntington State WV Zip [REDACTED] Country - Age 0
Home Phone [REDACTED] 0000 Work Ph. [REDACTED] 0000
If Company Owned - Name -

Driver

Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

Claimant

Title Ms First Name [REDACTED] Middle - Last Name [REDACTED]
Street same as owner/driver
City - State - Zip - Country - Age -
Home Phone Work Ph.

Represented by Attorney? No

Attorney

Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

End of General Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

Vehicle Information

VIN 1G8AJ55F07Z
Year - Model ION New/Used/Demo USED Delivery Date 9/8/2006
Transaxle AUT Engine 4 Cyl, 2.2L Engine Mileage 15
License# - State -

Inspection# - Station -
Expiration Date -

Special Equipment/Features

Sir Equipped Yes ABS No Traction Control No

Nature and Extent of Damages
Smashed on both sides.

Est. Cost of Repairs \$ 0
Source of Estimate -

Product Campaigns That Vehicle Was Subject of.
If Appropriate, Attach Copy of Campaign Bulletin.

Campaign Status Description

Tires	Size	Brand	Condition	Air/psi	Tread/32 in
Left Front	-	-	-	0	0
Comments	-	-	-	-	-
Right Front	-	-	-	0	0
Comments	-	-	-	-	-
Left Rear	-	-	-	0	0
Comments	-	-	-	-	-
Right Rear	-	-	-	0	0
Comments	-	-	-	-	-
Spare	-	-	-	0	0
Comments	-	-	-	-	-

End of Vehicle Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

Property Damage

Damage, Other than Owners Vehicle (Vehicle Property Yes Other Than Vehicle No)

Owner

Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

Driver

Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

Vehicle

Make/Model/Year

Estimate of Speed -

By Whom? -

Extent of Damage

Property Owner

Title - First Name - Middle - Last Name -
Street -
City - State - Zip - Country - Age -
Home Phone Work Ph.

Kind of Damage

Extent of Damage

Additional Comments

End of Property Information

Print Date
9/15/2006

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

Incident Information

Was Another Vehicle Involved? No Number of Vehicles 0

Did vehicle overturn? Yes

Where can vehicle be seen? Maynard's in Wayne, WV on Rt. 52.

Principal use of vehicle personal

Driver Description

Did you speak to driver? No

If No, Give Source of Driver Desc. -

Nature of Weather -

What Component(s) are Allegedly defective airbags & brakes

Who made allegation of defect claimant-[REDACTED]

Estimated Vehicle Speed 55 MPH

Source of Estimated Vehicle Speed claimant-[REDACTED]

Was Vehicle towed? No

Towing Co. Name -

Towing Co. Address -

Tow Driver Name -

End of Incident Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

Location Information

Police Report Made? Yes Report Attached? No
Station Making Report - _____

Officer
Title - _____ First Name - _____ Middle - _____ Last Name - _____
Street - _____
City - _____ State - _____ Zip - _____ Country - _____ Age - _____
Home Phone _____ Work Ph. _____

Witness
Title - _____ First Name - _____ Middle - _____ Last Name - _____
Street - _____
City - _____ State - _____ Zip - _____ Country - _____ Age - _____
Home Phone _____ Work Ph. _____

Location of Incident
- _____

Kind of Road - _____ Kind of Shoulder - _____
Condition of Road - _____ Condition of Shoulder - _____ Posted Speed 0 MPH

Visual Obstructions
- _____

Additional Comments
- _____
- _____

End of Location Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

Retailer / Parts Detail Information

Were Photos Taken? No Number? 0

By Whom?

Title - First Name - Middle - Last Name -

Street 100 Saturn Pkwy

City Spring Hill State TN Zip 37174 Country USA Age 0

Home Phone Work Ph.

Vehicle Inspected No Inspector(s) Name -

CIGNA Rep. at Investigation

-

Selling Retailer SATURN OF CHARLESTON HUNTINGTON

City HURRICANE State WV

Servicing Retailer SATURN OF CHARLESTON HUNTINGTON

City HURRICANE State WV

Did Search of the National Service History Produce Customer Service Orders? Yes

How Many Line Items? 2

How & When was matter left with claimant?

No resolution. Case forwarded to ESIS for handling. DMC

End of Retailer Information

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

General Comments

1-21605425 VIN # 7Z [REDACTED] Airbags

Owner- [REDACTED]

Driver- [REDACTED]

Claimant- [REDACTED] -day phone [REDACTED]

09/14/06 [REDACTED]

I left a voice mail for the claimant to call me back.

DMC

09/14/06

The claimant called and left a voice mail to call her back. DMC

09/14/06 [REDACTED]

I called the claimant back, we discussed the incident. The claimant [REDACTED] (fiancé of the owner/driver) stated that the owner/driver and I passenger were traveling at about 55mph on a 2 lane road when the driver went off the right side, then over corrected to avoid a head on collision and went off of an approximately 20 foot embankment on the left side of the road, landing upside down, then skidded upside down impacting a tree before coming to rest. The owner/driver suffered fatal injuries as a result and the passenger was injured. The claimant stated that the driver was not wearing the seatbelt, but she thinks that the passenger was wearing his. The claimant stated that she feels that the airbags should have deployed and that the brakes may have not worked properly, both of which contributed to the loss of life and injuries. The vehicle is currently located at Maynard's in Wayne, WV (304-272-5449), the insurance involved is AARP (800-280-0555) and the claim # is [REDACTED] I advised the claimant that I was forwarding the case to ESIS/GM Central Claims unit, I provided her with their address and that she will need to contact them by letter. DMC

End of General Comments

Saturn Product Liability
Report of Preliminary Investigation
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/15/2006

Notification / Investigator Detail Information

Saturn Notified on Incident?
How? Service Request When? 9/12/200
Area Assigned SE

Assignment

Investigator
First Name Doug Middle M Last Name Cayton
Assignment Date 9/14/2006 Due Date 9/24/2006
Investigation Date - Received Date 9/14/2006

Info. from Further Investigation

-

CIGNA Office Code	<u>DETROIT, MI</u>	Date Sent	<u>-</u>
Area Approved By	<u>-</u>	Date	<u>-</u>
C.O.Approved By	<u>-</u>	Date	<u>-</u>

End of Notify Information

Saturn Product Liability
Report of Preliminary Investigation

** Saturn Confidential **

Case # [REDACTED]

Print Date
9/15/2006

Resolution Comments

Resolution: 1241, forwarded to CIGNA for handling

End of Resolution Comments

Saturn Product Liability
Option Report
** Saturn Confidential **

Case Nbr: [REDACTED]
Vin: 1G8AJ55F07Z [REDACTED]

OPTION CODE	OPTION DESCRIPTION
-----	-----
C60	Air conditioning, ma
AR9	PROCESSING OPTION
6AA	PROCESSING OPTION
D35	O/S LH Remote & RH M
J41	Front Disc, Rear Dru
U1C	CD Radio
7AA	STRUTS
15U	Golden Cashmere
8AA	STRUTS
15L	Golden Cashmere
9AA	STRUTS
PG1	15" Steel Wheel
FE9	Federal Emissions
AK5	Driver & Front Passe
L61	4 Cyl, 2.2L Engine
NK5	3 Spoke Steering Whe
MN5	4T45E 4 Speed Automa
UE1	OnStar
52C	Tan Cloth
FE1	SUSPENSION SOFT RIDE
IPC	TRIM INTERIOR DESIGN
K62	105 Amp Generator
MX0	Transmission, 5 spee
QTU	P195 15" Tires
UH8	TRIP ODOM CLUSTER
US6	ANTENNA FIXED
UX7	Four Extended Range
V73	VEHICLE STATEMENT
52I	INTERIOR TRIM TAN
RF3	Level 2 Sedan Automa
BBC	BODY COLOR ROOF RAIL
NT7	FEDERAL EMISSION SYS
R7Y	Processing Code for
SLM	PROCESSING OPTION
FY1	3.63RATIO TRANSAXLE
P2W	Sport Wheel Cover
R6H	Processing Code for
R6P	Processing Code for
R9N	Pricing Interior Tri
1SZ	Discount Option Pack

CSO History Information
Case # - [REDACTED]
VIN - 1G8AJ55F07Z [REDACTED]

Facility	CSO Nbr	Miles	Case Nbr	Case Typ	CSO Dt	Net Paid	Labor Op
10904	[REDACTED]	1	01	PD	8/14/2006	\$82.09	Z7000
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-					
	Failed Part Nbr	-	-				
10904	[REDACTED]	1	02	CP	8/14/2006	\$0.00	M6011
	Complaint	-	-				
	Conditon	-	-				
	Cause	-	-				
	Failed Labor	-					
	Failed Part Nbr	-	-				

END OF CSO HISTORY REPORT

* CAC Case # [REDACTED] SCREEN UPDATED ON 9/15/06 * DMC

Saturn CAC Information..

** Saturn Confidential **

Case # [REDACTED]

Print Date

9/14/2006

CAC Case Information

CAMIS Case Number [REDACTED]

Owner: [REDACTED]

Huntington

WV [REDACTED]

Home Phone: [REDACTED]

Work Phone: [REDACTED]

Source: Family Member

Contact: Service Request

Issue Comments:

Milage unknown/15 miles at PDI Caller [REDACTED] alleged [REDACTED]
[REDACTED] airbags didn't deploy and this was a malfunction that resu
lted in his death during a rollover accident on 9/9/2006. I stated CBE

Vehicle: 1G8AJ55F07Z [REDACTED] 2007

Mileage: 15

Delivery: 9/8/2006

In Warranty: Yes

Retailer: 10904

Problems: 0 llegalation GM 12T01 - Product A41

Resolution Comments:

-
-
-
-
-
-

Memo: No Corporate File: Yes

Legal: No Letter: No

Close: Yes

End of CAC Case Information

TA000091888

Saturn CAC Information...
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/14/2006

CAC Legal Information

CAMIS Case Number [REDACTED]

Legal Information I

Case Type: Product Liabili
PL Basic Info: Product Liabili
Reason:

-
Representation: No

Request: -
Vehicle Disposition: -

Legal Information II

Outcome: -
Legal Correspondence: No

PL Basic Information I

Allegation: SIRs didn't deploy causing fatality
Driver at time of incident: [REDACTED]
Vehicle Damage: Yes Description: Smashed on both sides.
Property Damage: No Description: -
Date and Time of the incident: 9/9/2006

PL Basic Information II

Injuries: Yes Description: 1 fatality. 1 somewhat injured.
Additional Vehicle Involved? No Description: -
Police Report Filed? Yes Where? Filed, no report # available.
Where is the vehicle now? Maynard's in Wayne, WV on Rt. 52.
Contact # for vehicle location: 30452541430000
Claimant's Permission for Investigation? No

End of CAC Legal Information

Saturn CAC Information
** Saturn Confidential **
Case # [REDACTED]

Print Date
9/14/2006

CAC Memopad Information

CAMIS Case Number [REDACTED]

Date: 9/12/2006 User: DCAYTON Approve

Type: Approve - Contact Name: Doug Caytonprint out

Date: 9/11/2006 User: JREDDING Inbound Call

Type: Inbound Call - Contact Name: Josiah Redding****VIN# 1g8aj55f07z [REDACTED] NOT YET IN DATABASE*** Purchased on Saturday 9/9/2006. 2007 ION. [REDACTED] alleged: [REDACTED] bought the car over the weekend. -On 9/9/2006 at about 3:30 -4:00 p.m., [REDACTED] was involved in a fatal crash in his new Saturn, and the airbags didn't deploy. -There was one other occupant with him who survived with some injuries. [REDACTED] would still be alive today if the airbags had worked properly. -The accident happened on Rt. 75 in Lavalette, WV. -The car ended up 20 feet below the road. -The car is currently at Maynard's in Wayne, WV on Rt. 52. -The insurance was through AARP. She has no claim # yet. She had full coverage insurance. -A police report was filed, but she doesn't have the number. -Both sides of the car were smashed in. It was basically totalled, though the insurance company hasn't looked at it yet. -The road conditions were dry and the weather was clear. -The car was traveling at about 55 mph, according to the surviving passenger who says he saw the speedometer, and they were going under the speed limit. -She was not sure if they were wearing seatbelts at the time. -There were only 2 occupants in the car, [REDACTED] and his best friend. I stated: -CBE 7-10. -SR#. -Forward to Product Support Team. -I will also send some information about the SIR system.

Date: 9/12/2006 User: JREDDING Outbound Call - No Answer

Type: Outbound Call - No Answer - Contact Name: Josiah Redding(304) 525-4143. [REDACTED]'s line was busy.

Date: 9/12/2006 User: JREDDING Outbound Literature

Type: Outbound Literature - Contact Name: Josiah ReddingI prepared and SIR brochure to send to the customer, and mailed it out.

Date: 9/12/2006 User: JREDDING Outbound Retailer Call

Type: Outbound Retailer Call - Contact Name: Josiah ReddingWalter in Sales is who referred the customer to SCAC. I talked to him, and he gave me the VIN# and the name it shows up under: [REDACTED] 7z [REDACTED] He said the accident was a rollover, and he tried to tell her that the airbags are meant to go off only in

Saturn CAC Information

** Saturn Confidential **

Case # [REDACTED]

Print Date

9/14/2006

certain circumstances, and it's hard to determine if this was one of them. He also said the car went over an embankment. He said he only sold the car to them on Saturday. He transferred me back to service, where I spoke with Jimmy and told him we shouldn't work on the car in case it happens to show up at the lot. He agreed.

Date: 9/12/2006 User: JREDDING Outbound Retailer Call

Type: Outbound Retailer Call - Contact Name: Josiah ReddingI called Walter back. He verified the full VIN# again. lg8aj55f07z [REDACTED] 2007 ION

Date: 9/12/2006 User: JREDDING SR Summary

SR Summary**Milage unknown/15 miles at PDI** Caller [REDACTED] alleged [REDACTED] airbags didn't deploy and this was a malfunction that resulted in his death during a rollover accident on 9/9/2006. I stated CBE.

Date: 9/12/2006 User: JREDDING Standard Questions

1. There were injuries as a result of the accident. 2. Injuries: 1 fatality. 1 somewhat injured. 3. There was no property damage as a result of the accident. 4. [REDACTED] was driving at the time of the incident. 5. There were 2 occupants in the vehicle. 6. The Owner's daytime phone is [REDACTED] The Owner's evening phone is [REDACTED] The Claimant's daytime phone is [REDACTED] The Claimant's evening phone is [REDACTED] 7. The events leading up to the incident are as follows: SIRs didn't deploy causing fatality 8. The incident occurred on 09/09/2006 at 15:30. 9. Rt. 75 in Lavalette, WV10. clear11. dry12. The vehicle was traveling at 55.13. AARP. Not claim # yet. Full Coverage.14: Vehicle Loc: Maynard's in Wayne, WV on Rt. 52.15. Vehicle Damage: Smashed on both sides.16. Police Report: Filed, no report # available.17. There were no other vehicles involved in the incident.18. Permission has not been granted to inspect the vehicle.

End of CAC Memopad Information

3ROA0050	Owner Of Record	09/13/06
OWNRINQY	Owner VIN Inquiry	09:48:46
DXC61		DXC61
VIN #: 1G8AJ55F07Z [REDACTED]	Owner Seq No: 01	MBG Indctr:
Operator Type: I	Effective Dt: 09-08-2006	In Serv Date: 09-08-2006
Vehicle Status: 00	Document Loc:	In Serv Miles: 5
Update Source: SROP6000	Selling Fclty: 10904	Resp Fclty: 10904
Update Date: 09-12-2006	Contract Len:	Miles To Fclty: 33
Company:		

Buss Ph:
MVP #:

Operator: [REDACTED]

Home Ph: [REDACTED]
Buss Ph: [REDACTED]

HUNTINGTON WV [REDACTED]

E-mail:

Language: E

Campaigns:

CURRENT OWNER

Command:

PF 16 PLAN INQ 19 OWNRNAME 20 CVTXREFU 21 LISTAPP 22 HISTLIST

FORMATTED INVOICE DATA INQUIRY

PAGE NO: 01

PROCESSING SOURCE: SATURN

GENERAL MOTORS CORPORATION

& SUBSIDIARIES

RENAISSANCE CENTER

DETROIT MI 48243-1114

VEHICLE INVOICE ZAD00565622

DATE TIME RETAIL STOCK

INV AMT RETAIL - STOCK

12211.10 INVOICE 08/09/06

883.20 SHIPPED 08/09/06

N/C

EXP I/T 08/13/06

INT COM 08/14/06

0.00

PRC EFF 08/09/06

0.00 KEYS SECURED

WFP-S MTH OPT-2

BANK: GMAC - 023

CHG-TO 10-904

SHIP WT: 2747

MORE RECORDS

06=AR EVENT

```
10=PRINT
```

P/W:

RCMPR029
15:05:14

FORMATTED INVOICE DATA INQUIRY
PROCESSING SOURCE: SATURN

09/12/06
PAGE NO: 02

HP: 18.4
GMS: 13406.70
SUPPLR: 14006.63
MRM: 14610.00
DAN: I2A1
MEMO 626.00

COMMAND ==> _____

PF01=HELP 02=INV SEL 03=PRV SCRN 04=VEHEVENT 06=AR EVENT
PF07=PGUP 08=PGDN 09=INV ERR 10=PRINT

MORE RECORDS

P/W:

RCMPR029
15:05:49

FORMATTED INVOICE DATA INQUIRY
PROCESSING SOURCE: SATURN

09/12/06
PAGE NO: 03

TOTAL MODEL & OPTIONS	14020.00	13162.30	ACT 231	13331.70
DESTINATION CHARGE	590.00	590.00	H/B 261	420.60
MARKETING SERVICE CHARGE		400.00	ACT 231	400.00

TOTAL	14610.00	14152.30	PAY 310	14152.30
-------	----------	----------	---------	----------

MEMO: TOTAL LESS HOLDBACK AND

APPROX WHOLESALE FINANCE CREDIT	13535.80
---------------------------------	----------

INVOICE DOES NOT REFLECT DEALER'S ULTIMATE COST BECAUSE OF MANUFACTURER
REBATES, ALLOWANCES, INCENTIVES, HOLDBACK, FINANCE CREDIT AND RETURN TO

COMMAND ==> _____

MORE RECORDS

PF01=HELP	02=INV SEL	03=PRV SCR N	04=VEHEVENT	06=AR EVENT
PF07=PGUP	08=PGDN	09=INV ERR	10=PRINT	

P/W:

RCMPR029 FORMATTED INVOICE DATA INQUIRY 09/12/06
15:05:57 PROCESSING SOURCE: SATURN PAGE NO: 04
DEALER OF ADVERTISING MONIES, ALL OF WHICH MAY APPLY TO VEHICLE.

THIS MOTOR VEHICLE IS SUBJECT TO A SECURITY INTEREST HELD BY GMAC.

SATURN OF CHARLESTON HUNTINGTON
ONE SATURN WAY
HURRICANE WV 25526

REMIT TO GMAC NO. 023
VIN 1G8AJ55F072 [REDACTED]
\$ 14152.30 INV ZAD00565622
DUE 08/14/06 DEALER 10-904

COMMAND ==> NO MORE RECORDS
PF01=HELP 02=INV SEL 03=PRV SCRN 04=VEHEVENT 06=AR EVENT
PF07=PGUP 08=PGDN 09=INV ERR 10=PRINT P/W:

*** GM INTERNAL USE ONLY ***

VEHICLE HISTORY - FULL DETAIL REPORT

RUN DATE: 09/12/06

CURRENT OWNER

OWNER NOT FOUND
RETAILER NOT FD

FACILITY:

SALE DATE: / /

FACILITY CODE: 10904 - SATURN OF CHARLESTON HUNTINGTON

CASE TYPE: CP

VIN: 1G8AJ55F07Z LINE SEQ: 629573 FAILED PART:

LABOR CODE: M6011 STATE INSPECTION STICKER

CSO: 0088215 DATE: 08/14/06 TOTAL COST: 12

MILES: 1

COMPL: NOT FOUND COND: NOT FOUND CAUSE: NOT FOUND

COMMENTS: 0000

FACILITY CODE: 10904 - SATURN OF CHARLESTON HUNTINGTON

CASE TYPE: PD

VIN: 1G8AJ55F07Z LINE SEQ: 629573 FAILED PART:

LABOR CODE: Z7000 PRE-DELIVERY INSPECT

CSO: 0088215 DATE: 08/14/06 TOTAL COST: 82

MILES: 1

COMPL: NOT FOUND COND: NOT FOUND CAUSE: NOT FOUND

COMMENTS: 0000

WEST VIRGINIA UNIFORM TRAFFIC CRASH REPORT

PAGE 1 OF 4

Date of Crash 09/09/06		M T W T F S Sun 9 9 9 9 9 9 9		Time of Crash 1507 HRS		CRASH REPORTED BY: 1 State Police 2 Sheriff 3 City Police 4 Other		Time of Notification 1508 HRS		Time of Arrival 1577 HRS		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other											
COUNTY Wayne		CITY OR TOWN Lava Ledge		HIGHWAY CLASSIFICATION 1 Interstate 2 U.S. 3 WV 4 County 5 City 6 Other		ADVISORY SPEED 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		IF ON CONTROLLED ACCESS HIGHWAY, FILL IN ONE 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		RELATION TO ROADWAY (Location of First Impact) 1 On Road 2 Outside of Shoulder/Curb 3 Median 4 Other		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other											
CRASH OCCURRED ON ROUTE 1 75		STREET 1		MAXIMUM SPEED LIMIT 55		ADVISORY SPEED 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		IF ON CONTROLLED ACCESS HIGHWAY, FILL IN ONE 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		RELATION TO ROADWAY (Location of First Impact) 1 On Road 2 Outside of Shoulder/Curb 3 Median 4 Other		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other											
AT INTERSECTION WITH ROUTE 2		STREET 2		MAXIMUM SPEED LIMIT 55		ADVISORY SPEED 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		IF ON CONTROLLED ACCESS HIGHWAY, FILL IN ONE 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		RELATION TO ROADWAY (Location of First Impact) 1 On Road 2 Outside of Shoulder/Curb 3 Median 4 Other		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other											
IF NOT AT INTERSECTION: ☐ FEET ☐ MILES ☐ H ☐ E ☐ S ☐ W ☐ O ☐ F		STREET, HIGHWAY, TOWN ETC.		MAXIMUM SPEED LIMIT 55		ADVISORY SPEED 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		IF ON CONTROLLED ACCESS HIGHWAY, FILL IN ONE 1 Main Road 2 Main Road at Intersection 3 Entrance Ramp On 4 Exit Ramp On		RELATION TO ROADWAY (Location of First Impact) 1 On Road 2 Outside of Shoulder/Curb 3 Median 4 Other		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other											
IF LOCATION CAN BE DESCRIBED MORE PRECISELY, ENTER HERE SPECIAL REFERENCE OR GIS/SPS COORDINATES		ADDRESS [REDACTED]		CITY Hunt		STATE WV		LICENSE RESTRICTIONS VIOLATED 1 None 2 Driving 3 Other		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other											
DATE OF BIRTH [REDACTED]		SOCIAL SECURITY NUMBER [REDACTED]		CITATION NUMBER N/A		CITATION CHARGE N/A		DRIVER CONDITION 1 Normal 2 Fatigued 3 Asleep 4 Other		TEST RESULTS 1 None 2 Driving 3 Other		FATALITY ☐ Leaving Scene ☐ Hit & Run ☐ Striking Unattended Vehicle ☐ Other											
SOBRIETY TEST GIVEN ☐ Yes ☐ No		TYPE OF TEST GIVEN ☐ FIELD BLOOD ☐ BREATH PBT ☐ URINE OTHER ☐ N/A		TEST RESULTS 1 None 2 Driving 3 Other		DRIVER ACTION 1 Going Straight Ahead 2 Turning Right 3 Turning Left 4 U-Turning 5 Changing Lanes 6 Passing 7 Parking 8 Backed 9 Stopped in Traffic Lane 10 Merging 11 Stopping or Stopping 12 Stopped in Traffic Lane 13 Entering or Leaving Driveway 14 Pulling Out from Parking Space 15 Other (SEE NARRATIVE)		OWNER'S FULL NAME SAME AS DRIVER		ADDRESS SAME AS DRIVER		CITY Hunt		STATE WV		ZIP 26041							
YEAR 2007		MAKE Saturn		MODEL Ion		STYLE 4door		COLOR (List Primary/Secondary) Gold		VEHICLE IDENTIFICATION NUMBER 168A155F072		DIRECTION TRAVEL (If leaving, enter direction before turn.) 1 None 2 On 3 Off 4 Above 5 Below 6 Unknown		TOTAL OCCUPANTS OF THIS VEHICLE 2		EXTENT OF DAMAGE 1 None 2 Minor 3 Moderate 4 Major 5 Unknown		DRIVEABLE 1 Yes 2 No		DAMAGED AREAS 1 Front 2 Rear 3 Left 4 Right 5 All Areas		PT. OF INITIAL IMPACT 1 Front 2 Rear 3 Left 4 Right 5 All Areas	
TOWED DUE TO DAMAGE ☐ Yes ☐ No		TOWED BY Mainards		TOWED TO Mainards Lot		AUTO LIABILITY INSURANCE ☐ Yes ☐ No		INSURANCE COMPANY Sentinel Ins. (Hartford)		POLICY NO. [REDACTED]		AGENT [REDACTED]		CONTRIBUTING CIRCUMSTANCES (Check One or More) 1 No Improper Driving 2 Exceeding Speed Limit 3 Exceeding Safe Speed 4 Changing Lanes Improperly 5 Following Too Closely 6 Disregarded Traffic Control 7 Did Not Have Right of Way 8 Failure to Maintain Control 9 Driving Under Minimum Speed 10 No Signal or Improper Signal 11 Turning Improperly 12 Passing Improperly 13 Parking Improperly 14 Backing Improperly 15 Avoiding Animal or Vehicle 16 Distraction Inside Vehicle 17 Walking Violation 18 Driver Under Influence 19 Pedestrian Under Influence 20 Slippery Pavement 21 Other Roadway Defects 22 Previous Accident 23 Left of Center 24 Other (SEE NARRATIVE)		DAMAGED AREAS 1 Front 2 Rear 3 Left 4 Right 5 All Areas		PT. OF INITIAL IMPACT 1 Front 2 Rear 3 Left 4 Right 5 All Areas					
DRIVER'S FULL NAME [REDACTED]		ADDRESS [REDACTED]		CITY Hunt		STATE WV		ZIP 26041		DATE OF BIRTH [REDACTED]		SOCIAL SECURITY NUMBER [REDACTED]		DRIVER LICENSE NUMBER [REDACTED]		CITY Hunt		STATE WV		ZIP 26041			
DATE OF BIRTH [REDACTED]		SOCIAL SECURITY NUMBER [REDACTED]		CITATION NUMBER [REDACTED]		CITATION CHARGE [REDACTED]		DRIVER CONDITION 1 Normal 2 Fatigued 3 Asleep 4 Other		TEST RESULTS 1 None 2 Driving 3 Other		CONTRIBUTING CIRCUMSTANCES (Check One or More) 1 No Improper Driving 2 Exceeding Speed Limit 3 Exceeding Safe Speed 4 Changing Lanes Improperly 5 Following Too Closely 6 Disregarded Traffic Control 7 Did Not Have Right of Way 8 Failure to Maintain Control 9 Driving Under Minimum Speed 10 No Signal or Improper Signal 11 Turning Improperly 12 Passing Improperly 13 Parking Improperly 14 Backing Improperly 15 Avoiding Animal or Vehicle 16 Distraction Inside Vehicle 17 Walking Violation 18 Driver Under Influence 19 Pedestrian Under Influence 20 Slippery Pavement 21 Other Roadway Defects 22 Previous Accident 23 Left of Center 24 Other (SEE NARRATIVE)		DAMAGED AREAS 1 Front 2 Rear 3 Left 4 Right 5 All Areas		PT. OF INITIAL IMPACT 1 Front 2 Rear 3 Left 4 Right 5 All Areas							
YEAR [REDACTED]		MAKE [REDACTED]		MODEL [REDACTED]		STYLE [REDACTED]		COLOR (List Primary/Secondary) [REDACTED]		VEHICLE IDENTIFICATION NUMBER [REDACTED]		DIRECTION TRAVEL (If leaving, enter direction before turn.) 1 None 2 On 3 Off 4 Above 5 Below 6 Unknown		TOTAL OCCUPANTS OF THIS VEHICLE [REDACTED]		EXTENT OF DAMAGE 1 None 2 Minor 3 Moderate 4 Major 5 Unknown		DRIVEABLE 1 Yes 2 No		DAMAGED AREAS 1 Front 2 Rear 3 Left 4 Right 5 All Areas		PT. OF INITIAL IMPACT 1 Front 2 Rear 3 Left 4 Right 5 All Areas	
TOWED DUE TO DAMAGE ☐ Yes ☐ No		TOWED BY [REDACTED]		TOWED TO [REDACTED]		AUTO LIABILITY INSURANCE ☐ Yes ☐ No		INSURANCE COMPANY [REDACTED]		POLICY NO. [REDACTED]		AGENT [REDACTED]		CONTRIBUTING CIRCUMSTANCES (Check One or More) 1 No Improper Driving 2 Exceeding Speed Limit 3 Exceeding Safe Speed 4 Changing Lanes Improperly 5 Following Too Closely 6 Disregarded Traffic Control 7 Did Not Have Right of Way 8 Failure to Maintain Control 9 Driving Under Minimum Speed 10 No Signal or Improper Signal 11 Turning Improperly 12 Passing Improperly 13 Parking Improperly 14 Backing Improperly 15 Avoiding Animal or Vehicle 16 Distraction Inside Vehicle 17 Walking Violation 18 Driver Under Influence 19 Pedestrian Under Influence 20 Slippery Pavement 21 Other Roadway Defects 22 Previous Accident 23 Left of Center 24 Other (SEE NARRATIVE)		DAMAGED AREAS 1 Front 2 Rear 3 Left 4 Right 5 All Areas		PT. OF INITIAL IMPACT 1 Front 2 Rear 3 Left 4 Right 5 All Areas					

[illegible]**PHONE #:**

M. W. Wilson

Y WITNESS:

WILKINS & JONES
WINDSOR TAYLOR

•

OFFICER:

ASSISTING OFFICER:

2006-2301

DRAW SCENE AS OBSERVED, INCLUDING ROADWAY LAYOUT, VEHICLE, PEDESTRIAN OR OBJECT STRUCK, TRAFFIC CONTROLS, SKIDMARKS, ETC.

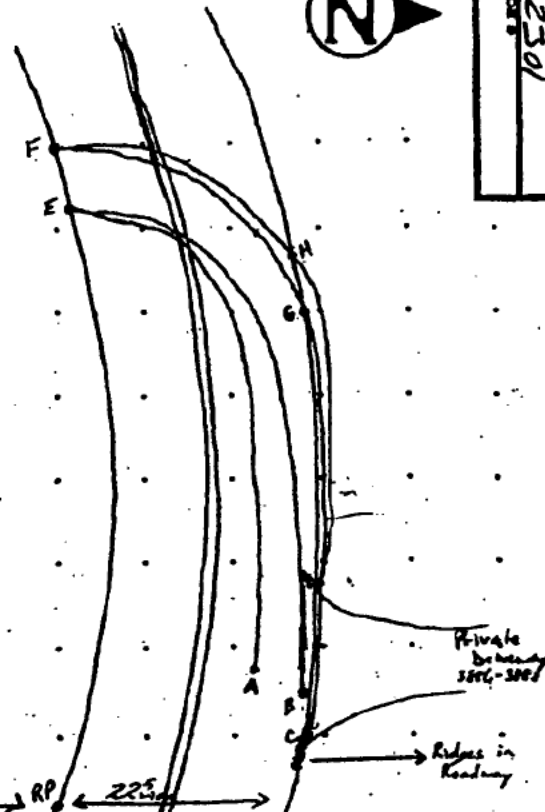
DRAW ARROW POINTING NORTH IN CIRCLE

IMPORTANT: NUMBER THE VEHICLES ACCORDING TO THE VEHICLE NUMBERS ON THE FRONT PAGE. Rt. 75

COLLISION DIAGRAM

Drawing Not to Scale
Scale: 1 inch = 50 feet

A	70 ^W	13 ^N
B	46 ^W	22 ^E
C	49 ^W	22 ^E
D	90 ^W	23 ^N
E	339 ^W	0°
F	393 ^W	0°
G	167 ^W	22 ^E
H	224 ^W	22 ^E
I	407 ^W	40 ^W
J	403 ^W	42 ^E
K	412 ^W	50 ^E



Vehicle made impact with point K

CSP 412^W ← 12° → RP ← 22^E

DESCRIBE WHAT HAPPENED (Refer to Vehicles by Number)

NARRATIVE

On 09/09/06 this officer and Sgt. M. Wilson responded to Rt. 75 in reference to a single vehicle accident. Passenger, [REDACTED], advised no other vehicles were involved. By the marks on the roadway the vehicle ran off of the roadway right, the driver, [REDACTED] In, lost control of the vehicle. The vehicle turned 90° on the roadway then ran off of the roadway left, down an embankment and the vehicle turned onto its top ejecting [REDACTED]. Paramedic on scene advised [REDACTED] was laying on the ground between point J and the nearest tree to the west (K). [REDACTED] was moved before officers arrival and was pronounced at Cabell Huntington Hospital. [REDACTED] advised [REDACTED] was not traveling at a speed greater than 55 mph, [REDACTED] statement is attached advising what he remembers of the accident. Coroner [REDACTED] responded to [REDACTED] is being sent to the State Medical Examiners office for further review.

STATEMENTS OF INVOLVED DRIVERS AND WITNESSES (IF AVAILABLE)

Statement given by passenger in vehicle 1:

On 09/09/06 we were driving on Rt. 75 came around this bend, I don't know if he swerved or lost control of the vehicle but we went onto the berm, he was trying to get off of the berm and he seen in an emergency lane and swerved to miss it, I believe he lost control. We went off of the road and the car flipped on its top. I looked and I didn't see him so I knew he got ejected. I am certified in CPR and I attended to him ^{when} the medics got here.

[REDACTED]

9/9/06

[REDACTED]

[REDACTED]

ATTACH ADDITIONAL STATEMENT SHEETS AS NEEDED